

		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
12	Rodriguez v. Covidien LP, et al. 2024-01394865	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of a \$1,610,000 class action and PAGA settlement. The court has the following questions and comments: 1. Plaintiff filed an overlong brief without obtaining leave of court. Plaintiff should not do so again. Failure to comply with applicable court rules may result in sanctions and/or an order striking the overlong brief. <u>As to the settlement:</u> 2. The settlement agreement is between plaintiff and defendant Covidien LP. How and when does plaintiff propose to resolve the case against defendants Medtronic, Inc. and Medtronic USA, Inc.? 3. Plaintiff should state her total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). Plaintiff should also submit a copy of her individual settlement agreement. 4. The "Released Class Claims" in paragraph 1.38 should be revised as follows: (i) the word "reasonably" should be inserted in the second sentence after "or" and before "could have been alleged"; and (ii) in the second sentence, the phrase "of the First Amended Class Action and Representative Action Complaint" should be replaced with "alleged in the First Amended Class Action and Representative Action Complaint." 5. In the first sentence of the "Released PAGA Claims" in paragraph 1.39 the redundant phrase "for civil penalties available under PAGA" should be removed. The second sentence is overbroad and unclear and should be removed. In addition, the phrase "PAGA Employees" does not appear to be defined in the settlement agreement and should be replaced with a term (e.g., Aggrieved Employees) that is defined in the agreement. 6. The "Released Parties" provision in paragraph 1.40 is overbroad as it includes unrelated, unidentified and/or ambiguous third parties such as "affiliates" and "sponsored employee benefit plans, and their respective successors and predecessors in interest, all of their respective officers, directors, employees, administrators, fiduciaries, trustee and agents, and each of their past, present and future officers, directors, shareholders, employees, agents, principals, heirs, representatives,

		accountants, auditors, consultants, attorneys, insurers and reinsurers.” 7. Defendant should state in declarations filed with the court, whether, after making reasonable inquiry, since the time it signed the settlement agreement they have become aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declaration(s) shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 8. The phrase “and the LWDA” should be removed in paragraph 6 and paragraph 6.3. 9. The second-to-last sentence in in paragraph 8.6 should be revised to state: (i) the parties shall file with the court all disputes submitted by class members, the evidence submitted, and the resolution of the disputes, and (ii) although the settlement administrator may make the initial decision regarding claim disputes, the court may review any decision made by the settlement administrator regarding a claim dispute. In the last sentence of paragraph 8.6, the word “initial” should be inserted before “determination.” 10. Subsection (1) of paragraph 9 should be removed. The court will not approve a settlement that permits defendant to shorten the Class Period and/or the PAGA Period. 11. While the court will not determine the amount of attorneys’ fees to be awarded until final approval, the court is unlikely to approve attorneys’ fees in excess of 30% of the gross settlement amount absent unique circumstances. Plaintiff’s counsel should address in the supplemental filing whether any such unique circumstances exist here. 12. Plaintiff seeks an enhancement award of \$15,000. While the court will not determine the amount of any enhancement award for plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. Plaintiff should address in the supplemental filing whether any such unique circumstances exist here. <u>As to the notice:</u> 13. The notice should be revised consistent with the above. 14. As a general observation, the notice should be substantially shortened and duplicative language and sections should be removed.
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13	Solorzano v. T&J Fresh Co. 2018-00981299	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$110,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The parties have added terms to paragraph 5 of the settlement agreement, including that if defendant defaults on the second settlement installment payment and does not cure the default, the settlement agreement "shall become null and void." Amendment ¶ 2.6 (revising paragraph 5). Why would the settlement agreement become "null and void" if defendant does not pay the entire settlement amount? In addition, in the event the court grants approval of the settlement, the court will enter judgment based on the settlement agreement. 2. Plaintiff's counsel states plaintiff seek a \$7,500 enhancement payment. As an initial matter, and as identified in the court's August 21, 2025 order (ROA 499), the settlement agreement remains inconsistent regarding an enhancement payment for plaintiff. <i>Compare</i> Settlement Agreement ¶¶ 1.16, 3.2.3 <i>with</i> Settlement Agreement ¶¶ 1.10, 1.15; see also 8/21/25 Order (ROA 499) No. 3. The amendment to the settlement agreement does not address this issue. In addition, absent unique circumstances, the court is unlikely to approve an enhancement award for plaintiff of more than \$500 for this modest settlement. If any such unique circumstances exist, plaintiff should identify them in the supplemental filing. 3. In the August 21, 2025 order, the court stated that the settlement agreement provides defendant will pay the gross settlement amount in two "installment" payments. Settlement Agreement ¶ 4.3. The court asked why defendant is paying the settlement in two payments, and stated that if that is due to defendant's financial condition, the parties must submit evidence of defendant's financial condition, such as cash flow statements, profit and loss statements and a balance sheet. Plaintiff's counsel states that "[d]efendant confirmed that it was financially incapable of paying the settlement in a lump sum and will submit financial documentation to the court to support its financial condition." Supp. Jackson Decl. (ROA 514) ¶ 7. Defendant has not submitted any No financial documentation to the court. 4. In the August 21, 2025 order, the court stated that plaintiff's counsel sought costs in the amount of \$24,727.89. The court stated that (i) postage charges are not recoverable and should be removed and (ii) plaintiff should explain the translation charges and state the depositions taken and when they were taken. 8/21/25 Order (ROA 499) No. 9.
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